

HOUSE BILL No. 1348

DIGEST OF INTRODUCED BILL

Citations Affected: IC 8-1-46.1; IC 13-11-2-242; IC 13-18-12-7.5.

Synopsis: Regulation of grease control equipment. Establishes a statewide regulatory scheme for grease control equipment. Provides that a wastewater treatment facility shall accept septage from within the unit or a bordering unit.

Effective: July 1, 2026.

Pressel, Prescott, Morris

January 6, 2026, read first time and referred to Committee on Environmental Affairs.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1348

A BILL FOR AN ACT to amend the Indiana Code concerning utilities.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 8-1-46.1 IS ADDED TO THE INDIANA CODE
2 AS A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]:

4 **Chapter 46.1. Grease Control**

5 **Sec. 1. This chapter applies to the following:**

- 6 (1) A commercial facility that discharges wastewater
7 containing fats, oils, or grease into a sewer system.
8 (2) A food establishment (as defined in IC 16-18-2-137).
9 (3) A mobile retail food establishment (as defined in
10 IC 16-18-2-239.3).

11 **Sec. 2. As used in this chapter, "fats, oils, and grease" or "FOG"**
12 **means any organic substance derived from animal or vegetable**
13 **sources that may:**

- 14 (1) solidify;
15 (2) congeal; or
16 (3) become viscous at ambient temperatures;

17 **and can obstruct, accumulate, or interfere in a wastewater**



1 collection or a sewer system.

2 Sec. 3. As used in this chapter, "grease control equipment"
3 refers to the necessary combination of:

4 (1) grease interceptors; and

5 (2) grease traps;

6 to prevent fats, oils, grease, and food solids from being discharged
7 into a sewer system.

8 Sec. 4. As used in this chapter, "grease hauler" means a person
9 or company regulated and permitted by the Indiana department of
10 environmental management and that engages in the:

11 (1) collection;

12 (2) transport; or

13 (3) disposal;

14 of material removed from a grease trap or grease interceptor.

15 Sec. 5. As used in this chapter, "grease interceptor" means an
16 exterior or underground watertight receptacle that is designed to
17 intercept and retain:

18 (1) fats;

19 (2) oils;

20 (3) grease; and

21 (4) food solids;

22 from high volume wastewater flows before the wastewater is
23 discharged into a sewer system.

24 Sec. 6. As used in this chapter, "grease trap" means a watertight
25 tank designed to:

26 (1) intercept;

27 (2) congeal; and

28 (3) retain or remove;

29 fats, oils, and grease from wastewater before the wastewater is
30 discharged into a sewer system.

31 Sec. 7. As used in this chapter, "nonresidential onsite sewage
32 system" has the meaning set forth in IC 16-19-3.5-3.5.

33 Sec. 8. As used in this chapter, "properly sized" refers to the
34 sizing and configuration of a grease trap or grease interceptor in
35 accordance with:

36 (1) good engineering practice;

37 (2) state plumbing codes; and

38 (3) manufacturer specifications;

39 sufficient to prevent fats, oils, and grease from entering a sewer
40 system or a nonresidential onsite sewage system in quantities that
41 cause blockages, interference, or maintenance problems.

42 Sec. 9. As used in this chapter, "regulated entity" means a:



- (1) commercial facility that discharges wastewater containing fats, oils, or grease into a sewer system;
- (2) food establishment (as defined in IC 16-18-2-137); or
- (3) mobile retail food establishment (as defined in IC 16-18-2-239.3).

Sec. 10. As used in this chapter, "regulating authority" means the entity having jurisdictional oversight authority over the regulated entity.

Sec. 11. As used in this chapter, "sewer system" has the meaning set forth in IC 36-9-22.5-3.

Sec. 12. As used in this chapter, "utility" means:

- (1) a public utility (as defined in IC 8-1-2-1(a));
- (2) a municipally owned utility (as defined in IC 8-1-2-1(h));
- (3) a not-for-profit utility (as defined in IC 8-1-2-125(a));
- (4) a cooperatively owned corporation;
- (5) a conservancy district established under IC 14-33; or
- (6) a regional district established under IC 13-26;

that provides sewage disposal service to the public.

Sec. 13. (a) A regulated entity shall install and operate properly sized grease control equipment to prevent the discharge of wastewater containing fats, oils, or grease in concentrations that cause or contribute to:

- (1) blockages;
- (2) overflows; or
- (3) interference;

in a sewer system.

(b) The regulated entity's grease control equipment shall be:

- (1) designed; or
- (2) approved;

by a licensed professional engineer under IC 25-31 or a professional architect under IC 25-4.

(c) A regulated entity's grease control equipment shall be installed by a licensed plumber.

(d) A regulated entity that demonstrates through operational characteristics, inspection, or sampling that the regulated entity does not generate fats, oils, or grease in quantities requiring interception is:

- (1) exempt from the requirements of this chapter; and
- (2) not required to install grease control equipment.

Sec. 14. A regulated entity's compliance with this chapter is demonstrated through the installation, maintenance, and operation of grease control equipment in compliance with best practices that



1 meet applicable:

- 2 (1) state plumbing code requirements;
- 3 (2) manufacturer specifications;
- 4 (3) equipment performance standards; and
- 5 (4) sizing formulas adopted by the regulating authority.

6 Sec. 15. A regulated entity complying with this chapter shall be
7 charged the same base sewer rate as non-FOG commercial users.

8 Sec. 16. (a) The regulating authority shall evaluate a regulated
9 entity's compliance with this chapter based on the regulated
10 entity's actual discharge of FOG into a sewer system.

11 (b) A regulating authority shall consider the:

- 12 (1) size;
- 13 (2) products; and
- 14 (3) operational characteristics;

15 of each regulated entity when determining maintenance frequency,
16 inspection schedules, and rate classifications.

17 (c) A utility may establish surcharges only for verified
18 noncompliance resulting in:

- 19 (1) excessive FOG discharge; or
- 20 (2) significant sewer system impact;

21 documented through inspection or testing by the regulating
22 authority.

23 Sec. 17. (a) A regulating authority may not recommend and a
24 utility may not impose higher sewer rates or surcharges on a
25 regulated entity solely because of the regulated entity's business
26 type if the regulated entity:

- 27 (1) maintains an approved grease control program; and
- 28 (2) can demonstrate compliance with the performance
29 standard through maintenance records or testing.

30 (b) A utility or regulating authority may not:

- 31 (1) impose a blanket grease control equipment mandate; or
- 32 (2) require the:
 - 33 (A) installation of a specific type;
 - 34 (B) installation of a specific size; or
 - 35 (C) specific location;

36 of a grease trap or grease interceptor if a regulated entity has the
37 properly sized and maintained grease control equipment that
38 prevents FOG discharges exceeding the allowable concentration.

39 (c) A regulating authority or utility may not require the
40 following:

- 41 (1) A specific type of grease control equipment.
- 42 (2) The specific placement of grease control equipment on the



property of a regulated entity.

Sec. 18. (a) Before construction or a major renovation of a regulated entity, the owner of the regulated entity or the owner's agent shall submit the proposed grease control equipment design to the applicable regulating authority for review before installation.

(b) Upon receiving the grease control equipment design described in subsection (a), the regulating authority shall review the proposed design and provide:

- (1) a written approval;
- (2) a written denial; or
- (3) modification recommendations;

based on performance standards under this chapter within ten (10) business days.

(c) A regulating authority shall coordinate with the appropriate:

- (1) building and zoning authority;
- (2) plumbing permit authorities; or
- (3) utility;

to ensure the regulated entity receives consistent direction before construction.

(d) A regulating authority that determines a regulated entity's proposed:

- (1) grease control equipment design; or
- (2) maintenance plan;

does not meet the performance standard shall provide a written explanation to the regulated entity.

Sec. 19. (a) A regulated entity that installs grease control equipment consistent with a regulating authority's written approval is considered compliant upon installation.

(b) A regulating authority or utility may not require the regulated entity to retrofit or replace grease control equipment unless the regulated entity's FOG discharge continuously exceeds the allowable concentration.

(c) The regulating authority and utility shall notify the regulated entity of noncompliance through written notice within forty-eight (48) hours of the utility learning of the regulated entity's noncompliance.

Sec. 20. A regulating authority and utility shall permit a regulated entity to comply with this chapter through alternative grease control equipment or maintenance protocols approved by the regulating authority where installation of an exterior grease interceptor is impractical due to:



- (1) the available space;
- (2) the structure; or
- (3) other site constraints.

Sec. 21. A regulating authority shall maintain a FOG control and maintenance program. The program must include the following:

- (1) A registration or permit system linking each regulated entity to the regulated entity's:
 - (A) grease control equipment; and
 - (B) maintenance plan.
- (2) A maintenance rule requiring cleaning in accordance with a regularly scheduled maintenance protocol approved by a regulating authority.
- (3) Clear documentation procedures requiring a regulated entity using a grease hauler to maintain records provided to the regulated entity by a grease hauler that describes the:
 - (A) date of each haul;
 - (B) volume of FOG removed; and
 - (C) grease hauler's name.
- (4) Grease hauler accountability standards requiring:
 - (A) before and after photographs of grease control equipment;
 - (B) proof of proper disposal by the grease hauler; and
 - (C) a grease hauler to maintain all records of each dump for two (2) years and produce the records upon request of a regulating authority or the Indiana department of environmental management.
- (5) Inspection and enforcement procedures, including:
 - (A) periodic inspections;
 - (B) review of maintenance records; and
 - (C) a graduated enforcement system for regulated entities that continuously violate this chapter.
- (6) A variance and appeal process allowing regulated entities to demonstrate compliance through alternative methods certified by a:
 - (A) licensed professional engineer under IC 25-31; or
 - (B) professional architect under IC 25-4.
- (7) Educational materials or templates provided to regulated entities describing best management practices for grease control equipment.

Sec. 22. (a) A regulated entity shall do the following:

- (1) Install, operate, and maintain grease control equipment



designed to prevent fats, oils, and grease from entering the wastewater system or a nonresidential onsite sewage system.

(2) Ensure that grease control equipment is properly sized and maintained in compliance with section 13 of this chapter.

(3) Maintain records that include the:

(A) date of each haul;

(B) volume of FOG removed; and

(C) grease hauler's name.

(b) A regulated entity shall maintain all records under this section for two (2) years.

(c) A regulated entity that cleans its own grease control equipment is not required to keep records unless the regulated entity is found to produce FOG discharge exceeding the allowable concentration. Upon the failure of a regulated entity to maintain the allowable FOG concentration, the regulating authority shall notify the regulated entity to begin maintaining full cleaning logs and documentation. Once the regulated entity comes back into compliance with this chapter or the standards set by the regulating authority, the regulated entity is no longer required to maintain records.

Sec. 23. (a) A grease hauler shall do the following:

(1) Take before and after time stamped photographs of each service of a regulated entity.

(2) Maintain the time stamped photographs and share the time stamped photographs with the Indiana department of environmental management if requested by the Indiana department of environmental management.

(3) Maintain records showing that the total volume of FOG pumped from a regulated entity matches the total disposed of by the grease hauler.

(4) Provide documentation or an invoice to a regulated entity after service is completed with the following information:

(A) The date of the haul.

(B) The volume of FOG removed.

(C) The grease hauler's name.

(b) The Indiana department of environmental management may seek an injunction to prohibit a grease hauler that has violated this chapter more than three (3) times from operating within Indiana.

SECTION 2. IC 13-11-2-242, AS AMENDED BY P.L.19-2019, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 242. "Unit", for purposes of:

(1) section 148(c) of this chapter;



1 **(2) IC 13-18-12-7.5;**
 2 ~~(2) (3)~~ IC 13-20-17.5;
 3 ~~(3) (4)~~ IC 13-20-20;
 4 ~~(4) (5)~~ IC 13-21-14-3; and
 5 ~~(5) (6)~~ IC 13-23;
 6 has the meaning set forth in IC 36-1-2-23.
 7 SECTION 3. IC 13-18-12-7.5 IS ADDED TO THE INDIANA
 8 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
 9 [EFFECTIVE JULY 1, 2026]: **Sec. 7.5. (a) A unit that issues permits**
 10 **to install:**
 11 **(1) residential onsite sewage systems (as defined in**
 12 **IC 16-41-25-0.4); or**
 13 **(2) nonresidential onsite sewage systems (as defined in**
 14 **IC 16-19-3.5-3.5);**
 15 **shall allow for the disposal of septage picked up from within the**
 16 **unit or a neighboring unit at a wastewater treatment facility within**
 17 **the unit.**
 18 **(b) A wastewater treatment facility shall accept septage from a**
 19 **bordering unit.**

